TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

[Circular No. 1817]

PART 105—RELINQUISHMENTS, CANCELLATIONS AND REINSTATEMENTS

RELINQUISHMENTS

The headnote for § 105.1 and paragraphs (a) and (b) of that section, are amended to read:

§ 105.1 *When relinquished land becomes subject to further appropriation; relinquishments in right-of-way, amendment and repayment cases.* (a) (1) Upon the filing in the proper land office of the relinquishment of a homestead claim, the land, if otherwise available, will at once become subject to further application or other appropriation in accordance with the applicable public land laws. A provision to this effect is contained in section 1 of the act of May 14, 1880 (21 Stat. 140; 43 U. S. C. 202).

(2) Upon the filing of a relinquishment of an entry or claim (other than a homestead claim), or a lease, the land will not become subject to further application or other appropriation until the entry, claim or lease has been canceled pursuant to the relinquishment and the fact of the cancellation has been noted on the tract books in the land office.

(b) The relinquishment of an approved right-of-way may be conditioned upon the approval of a subsequent application, filed as an amendment to the approved right-of-way, or as an independent application, but conflicting in whole or in part with the approved right-of-way. Such a relinquishment will not be accepted and noted on the land office tract books until action on the subsequent application is taken.

(R. S. 2478; 43 U. S. C. 1201)

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 16, 1952.

[F. R. Doc. 52-5693; Filed, May 22, 1952; 8:48 a. m.]

PART 221—RULES OF PRACTICE

SUBPART B—PROCEEDINGS BEFORE THE DIRECTOR OF THE BUREAU OF LAND MANAGEMENT AND SECRETARY OF THE INTERIOR

MISCELLANEOUS AMENDMENTS

1. Section 221.75 is amended to read as follows:

§ 221.75 *Notice of appeal to Secretary.* (a) An aggrieved person desiring to appeal to the Secretary of the Interior from a decision rendered by the Director of the Bureau of Land Management must, within 30 days from the date of the service upon such person or his authorized representative of notice of the Director's decision, file a notice of appeal with the Director, Bureau of Land Management, Department of the Interior, Washington 25, D. C.

(b) A notice of appeal shall set forth clearly and concisely the grounds upon which the appellant contends that the Director's decision is erroneous.

(c) If the Director's decision indicates that any other person has in interest in the proceeding adverse to the appellant, the appellant shall, within the 30-day period prescribed in paragraph (a) of this section (or such further period as may be allowed by the Secretary or his representative for good cause shown), file a certificate showing that a copy of the notice of appeal has been served personally upon or mailed to each such person or his authorized representative. If the certificate accompanies the notice of appeal, it shall be filed with the Director of the Bureau of Land Management. Otherwise, it shall be filed with the Solicitor, Department of the Interior, Washington 25, D. C.

(d) An appeal shall be subject to summary dismissal for failure to comply with any of the requirements prescribed in this section.

2. Section 221.76 is amended to read as follows:

§ 221.76 *Filing of briefs.* (a) Within 20 days after filing a notice of appeal (or within such further period as may be allowed by the Secretary or his representative for good cause shown), the appellant may file with the Solicitor, Department of the Interior, Washington 25, D. C., a brief in support of his appeal. If any other person has an interest in the proceeding adverse to the appellant, the brief shall be accompanied by a certificate showing that a copy of the brief has been served personally upon or mailed to each such person or his authorized representative.

(b) Within 20 days after personal service upon or 25 days after the date of the mailing of the appellant's brief to an adverse party (or within such further period as may be allowed by the Secretary or his representative for good cause shown), the adverse party may file a reply brief with the Solicitor, Department of the Interior, Washington 25, D. C. The reply brief shall be accompanied by a certificate showing that a copy of the reply brief has been served personally upon or mailed to the appellant or his authorized representative.

3. Sections 221.77, 221.78, and 221.79 are revoked.

4. The foregoing amendments to the regulations shall be effective with respect to all decisions rendered by the Director of the Bureau of Land Management on and after the 30th day following the publication of the amendments in the FEDERAL REGISTER.

(R. S. 2478; 43 U. S. C. 1201)

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 16, 1952.

[F. R. Doc. 52-5694; Filed, May 22, 1952; 8:48 a. m.]

Appendix—Public Land Orders

[Public Land Order 827]

ALASKA

PARTIAL REVOCATION OF EXECUTIVE ORDER NO. 9153–A OF APRIL 30, 1942, AND RESERVATION OF PORTION OF LAND RELEASED THEREBY FOR USE OF DEPARTMENT OF THE ARMY FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 9153–A of April 30, 1942, as amended by Public Land Order No. 284 of June 12, 1945, reserving lands in Alaska for the use of the War Department for military purposes, is hereby revoked so far as it affects the land described as Tract No. 3 in that order.

The following-described tract of land within said Tract No. 3 is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws and reserved for the use of the Department of the Army for military purposes:

Beginning at a point of mean high tide on the northwest shore of the southwestern part of Unalaska Island, approximate latitude 53°25'13.5" N., longitude 167°30' W., thence by metes and bounds:

S. 26° 55' E., 8,289 feet to point of intersection of latitude 53°24' N., longitude 167°29' W.;

South, 6,085 feet to point of intersection of latitude 53°23' N., longitude 167°29' W.;

West, 14,514 feet to point of intersection of latitude 52°23' N., longitude 167°33' W.;

N. 44° 30' W., 8,500 feet to point of intersection of mean high tide and latitude 53°24' N., on shore south of West Point;

Northeasterly, along line of mean high tide of Chernofski Harbor around West Point, Mailboat Cove, Cutter Point, Mutton Cove, Chernofski Point and Ram Point to point of beginning.

The tract described contains approximately 2,885 acres.

The land released from withdrawal is unsurveyed and is undeveloped lowland.

As to such released land this order shall become effective at 10 a. m. on the 35th day after the signing of the order, at which time the land shall, subject to valid existing rights and to the provisions of existing withdrawals, be opened to settlement under the homestead laws and the homesite act of May 26, 1934, 48 Stat. 809 (48 U. S. C. 461), only, and to those forms of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10 a. m., on the 126th day after the date of this order, any of such land not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with appropriate laws and regulations.

Applications for this land which shall be filed in the Land Office, Bureau of Land Management, Anchorage, Alaska,

shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the homesite or homestead laws shall be governed by the regulations contained in Parts 64 to 66, inclusive, of Title 43 of the Code of Federal Regulations. Inquiries concerning this land shall be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 16, 1952.

[F. R. Doc. 52-5690; Filed, May 22, 1952; 8:47 a. m.]

[Public Land Order 828]

ALASKA

RESERVING LANDS FOR USE OF DEPARTMENT OF THE ARMY IN CONNECTION WITH RADIO STATION HOUSING SITE

By virtue of the authority vested in the President by section 1 of the act of March 12, 1914, 38 Stat. 305, 307 (48 U. S. C. 303) and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby reserved for the use of the Department of the Army in connection with a radio station housing site:

NORTH ADDITION TO ANCHORAGE TOWN SITE

Lots 1, 2, and 3, block K as shown on the plat of North Addition No. 4, Town Site of Anchorage, accepted January 4, 1951.

Section 2 of Public Land Order No. 546 of January 7, 1949, reserving the above-described lands, together with other lands, for the use of the Alaska Railroad, is hereby modified to the extent necessary to permit the reservation made by this order to become effective.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 16, 1952.

[F. R. Doc. 52-5686; Filed, May 22, 1952; 8:46 a. m.]

[Public Land Order 829]

ALASKA

RESERVATION OF LANDS ADJACENT TO OR WITHIN CHUGACH OR TONGASS NATIONAL FOREST FOR USE BY FOREST SERVICE, DEPARTMENT OF AGRICULTURE, AS ADMINISTRATIVE SITES, RECREATION AREAS, OR FOR OTHER PUBLIC PURPOSES; REVOKING EXECUTIVE ORDER NO. 8192 OF JULY 5, 1939

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands within the following-described areas adjacent to or within the Chugach or the Tongass National Forest in Alaska are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws but not the mineral-leasing laws, and reserved for use by the Forest Service, Department of Agriculture, as administrative sites, recreation areas, or for other public purposes as indicated:

CHUGACH NATIONAL FOREST

COOPER CREEK PUBLIC CAMP AND PICNIC GROUND

A. Beginning at a point, from which the center line of the Seward-Kenai highway on the left bank at mean high water line at the confluence of Cooper Creek with Kenai River, latitude 60°29′ N., longitude 149°53′ W., bears south, 100 feet, thence:
S. 86° W., 29.80 chains along the north right-of-way line of the Seward-Kenai highway to the mean high water line of Kenai River;
Northeasterly and southerly along the mean high water line of Kenai River to point of beginning.
The tract as described contains 10.35 acres.
B. Beginning at a point from which the beginning point of Tract A bears N. 24° W., 3.43 chains, thence
Southerly, 18.65 chains along the left bank of Cooper Creek;
North, 14.27 chains;
N. 86° E., 7.65 chains along south right-of-way line of Seward-Kenai highway to point of beginning.
The tract as described contains 9.15 acres.

HENEY CREEK PUBLIC SERVICE SITE

A. Beginning at a point on the east right-of-way line of Heney Creek road near Cordova, from which corner No. 6, U. S. Survey 2,610 bears S. 45° W., 1.35 chains, thence
East, 7.76 chains;
South, 6.90 chains;
West, 7.63 chains to east right-of-way line of Heney Creek Road;
N. 5° E., 2.70 chains along said right-of-way line;
N. 5° W., 4.25 chains along said right-of-way line to point of beginning.
The tract as described contains 5.21 acres.
B. Beginning at corner No. 5 of U. S. Survey 2,610, thence
East, 13.68 chains to corner No. 6, U. S. S. 2,610 at the west right-of-way line of the Heney Creek road;
S. 5° E., 3.30 chains along said west right-of-way line;
S. 5° W., 2.50 chains along said west right-of-way line;
West, 14.26 chains;
N. 5° 03′ E., 5.85 chains to point of beginning.
The tract as described contains 8.15 acres.

LOWER TRAIL LAKE PUBLIC RECREATION AREA

Beginning at corner No. 5 and M. C., H. E. S. No. 197, on the southerly shore of Lower Trail Lake, thence
Northeasterly, 38.00 chains, approximately, along the southerly shore of Lower Trail Lake to the most easterly point in a cove;
South, 35.00 chains;
West, 32.00 chains, to the east right-of-way line of the Alaska R. R., 100 feet from the center line thereof;
Northerly, 24.00 chains, along the east right-of-way line of the Alaska R. R., to point of beginning.
The tract as described contains approximately 96.00 acres.

PTARMIGAN CREEK PUBLIC RECREATION AREA

Beginning at a point from which corner No. 3, Lot 2, U. S. Survey No. 2518 bears S. 20° 30′ W., 1.46 chains, thence
North 36° W., 12.80 chains;
North 54° E., 13.00 chains;
South 36° E., 12.80 chains;
South 54° W., 13.00 chains to point of beginning.
The tract as described contains 16.64 acres.

PRIMROSE PUBLIC RECREATION AREA

Begining at a point on the mean water line on the southwest shore of Kenai Lake, due east of Corner No. 4, Lot A, Tract I, U. S. Survey No. 2530, thence
West, 17.50 chains;
North, 17 chains, approximately, to the mean water line, Kenai Lake;
Easterly and southerly along the mean water line of Kenai Lake to point of beginning.
The tract as described contains 29.5 acres.

DAVES CREEK-MUD LAKE PUBLIC RECREATION AREA

Beginning at a point on the south right-of-way line, 50 feet from the center line and perpendicular to Station 66 of the Kenai River Highway, as shown on Bureau of Public Roads plan for proposed Section 5 B-2, approximate latitude 60°32′ N., longitude 149°35′ W, map of which is on file in the Bureau of Land Management, thence
S. 66° E., 60.00 chains;
S. 24° W., 30.00 chains;
N. 66° W., 60.00 chains;
N. 24° E., 30.00 chains, to point of beginning.
The tract as described contains 180 acres.

QUARTZ CREEK PUBLIC RECREATION AREA

Beginning at a point on mean water line, Kenai Lake, which bears S. 62° W. from Station 450+00 of Kenai River Highway as shown on Bureau of Public Roads plan for proposed Section 5 B-2, approximate latitude 60°29′ N., longitude 149°44′ W., map of which is on file in the Bureau of Land Management, thence
N. 62° 00′ E., 115.00 chains;
N. 29° 30′ E., 46.00 chains;
S. 61° 00′ E., 77.00 chains;
S. 5° 00′ W., 16.00 chains;
S. 81° 30′ W., 36.00 chains;
S. 52° 00′ W., 89.00 chains;
S. 24° 00′ W., 30.00 chains;
S. 34° 30′ E., 60.00 chains;
S. 25° 00′ E., 50.00 chains;
S. 69° 30′ W., 13.50 chains approximately to mean water line of Kenai Lake;
Northwesterly, along mean water line of Kenai Lake to point of beginning.
The tract as described contains 1,359.2 acres.

KENAI LAKE ADMINISTRATIVE SITE

Beginning at corner 1 M. C., U. S. Survey 2497 on the shore of Kenai Lake, thence:
N. 88° 48′ E., 12.25 chains to the west right-of-way line of Alaska Railroad (100′ from center line thereof);
Southerly, 22.75 chains along said west right-of-way to the north bank of Ptarmigan Creek;
Westerly, 9.50 chains along north bank of Ptarmigan Creek to shore of Kenai Lake;
Northerly, 30.00 chains along shore line Kenai Lake to point of beginning.
The tract as described contains approximately 28.12 acres, within and adjacent to the Chugach National Forest.

BROADVIEW ADMINISTRATIVE SITE

Beginning at a point from which U. S. L. M. 2688 bears N. 57° W., 5.65 chains, thence
S. 69° 00′ E., 6.00 chains;
South, 2.29 chains;
S. 66° 30′ W., 2.39 chains;
N. 47° 30′ W., 5.87 chains;
N. 26° 00′ E., 1.75 chains to point of beginning.
The tract as described contains 2.19 acres.

The following 10 recreation areas lie adjacent to the Seward-Anchorage Highway, and are described with relation to